

25STCV28783 25STCV28783

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 25STCV28783 Hearing Date: July 1, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

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BELLA ASSETS, LLC,

Plaintiff,

vs.

VASANTA LLC, PREMIER AGENT NETWORK, INC., DIMITRI CHAMI, and DOES 1 through 50, inclusive,

Defendants.

Case No.:

25STCV28783

Hearing Date:

July 1, 2026

[TENTATIVE] ORDER RE: MOTION TO BE RELIEVED AS COUNSEL

I. BACKGROUND

Plaintiff Bella Assets, LLC ("Bella Assets") purchased residential real property in Los Angeles inside a designated local historic district subject to significant restrictions. Defendants Vasanta LLC, Premier Agent Network, Inc., and Dimitri Chami did not disclose these restrictions and designation to Bella Assets during the sale of the property.

On February 5, 2026, Bella Assets filed a substitution of attorney with the Court, which was stricken by the Court on May 21, 2026. The Court ordered Jin to file a motion to be relieved as counsel.

On May 21, 2026, Bella Assets' counsel, Jewels J. Jin/Jewels Jin Esquire APC ("Jin"), filed this instant motion to be relieved as counsel for Bella Assets.

No opposition has been filed to date.

II. LEGAL STANDARD

The process to be relieved as counsel of record requires: (1) "[a] notice of motion and motion to be relieved as counsel under Code of Civil Procedure section 284(2) must be directed to the client and must be made on the Notice of Motion and Motion to be Relieved as Counsel—Civil (form MC-051)" (Cal. Rules of Court, rule 3.1362, subd. (a))[1]; (2) a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel-Civil (form MC-052), which "must state in general terms and without compromising the confidentiality of the attorney client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1) (rule 3.1362, subd. (c)); (3) a proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil (form MC-053)," "must be lodged with the court with the moving papers," and "must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known" (rule 3.1362, subd. (e)); and (4) "[t]he notice of motion and motion, declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case" along with additional requirements depending on the type of service (rule 3.1362, subd. (d)).

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted if there is no prejudice to the client and it does not disrupt the orderly process of justice. (*Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915.) "After the order is signed, a copy of the signed order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court." (Rule 3.1362, subd. (e).)

III. DISCUSSION

Here, Jin submitted completed MC-051, MC-052, and MC-053 forms in compliance with the rule 3.1362 requirements. Jin originally failed to submit the MC-052 form and instead filed a separate declaration as an attachment to the MC-051 form stating there have been irreconcilable differences and circumstances arising between Jin and Bella Assets such that continued representation has become untenable. (Jin Decl., ¶ 2.) However, the following day after submitting the MC-051 and MC-053 forms, Jin submitted an MC-052 form. Jin asserts she served Bella Assets at their last known address via mail, with return receipt requested. (MC-052 ¶ 3(b)(1)(a).)

On May 22, 2026, Jin filed a proof of service showing service of the declaration on Defendants. On June 2, 2026, Jin filed proof of service with the Court demonstrating service of the MC-051, MC-052, and MC-053 forms on Bella Assets, but the proof of service does not show service on Defendants. (POS-030.) Therefore, Jin did not comply with the service requirements under Rule 3.1362, subdivision (d), which requires the notice of motion, motion, declaration, and proposed order be "served on the client and on all other parties who have appeared in this case."

Therefore, the Court DENIES the motion to be relieved as counsel.

IV. CONCLUSION

The Court DENIES the motion to be relieved as counsel.

Moving Party is ordered to give notice.

DATED: July 1, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.